

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
BLAYN CROSSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
DONALD SADOWY, Shield No. 13497, POLICE
OFFICER GAMALIER DAEZ, Shield No. 20302 and
POLICE OFFICERS JOHN DOES # 1-10 (names and
number of whom are unknown at present), and other
unidentified members of the New York City Police
Department,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

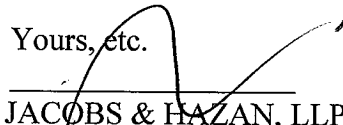
Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 1, 2013

Yours, etc.


JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
Police Officer Donald Sadowy, Shield No. 13497, 73rd precinct, 1470 E New York Ave,
Brooklyn, NY 11212
Police Officer Gamalier Daez, Shield No. 20302, 73rd precinct, 1470 E New York Ave,
Brooklyn, NY 11212

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, BLAYN CROSSON, by his attorneys, Jacobs & Hazan, LLP, as and for his
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On July 6, 2012, at approximately 1:00 p.m., plaintiff, BLAYN CROSSON, while lawfully driving in the vicinity of Rockaway Avenue and Somers Street, Brooklyn, New York, was subject to an unlawful, stop and search. Thereafter, on July 6, 2012, at approximately 1:30 p.m., in the vicinity of Broadway and Hull Street, Brooklyn, New York, plaintiff, BLAYN CROSSON, while lawfully requesting the defendant police officers give him their names and badge numbers, was subject to an unlawful assault, battery, use of excessive force, false arrest, and false imprisonment by the defendant New York City police officers. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, searched, assaulted, battered, falsely arrested, and falsely imprisoned plaintiff, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff BLAYN CROSSON is a resident of the State of New York.
3. POLICE OFFICER DONALD SADOWY, Shield No. 13497, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. POLICE OFFICER DONALD SADOWY, Shield No. 13497, is and was at all times relevant herein, an officer, assigned to the 73rd precinct.
5. POLICE OFFICER DONALD SADOWY, Shield No. 13497, is being sued in his individual and official capacities.
6. POLICE OFFICER GAMALIER DAEZ, Shield No. 20302, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. POLICE OFFICER GAMALIER DAEZ, Shield No. 20302, is and was at all times relevant herein, an officer, assigned to the 73rd precinct.
8. POLICE OFFICER GAMALIER DAEZ, Shield No. 20302, is being sued in his individual and official capacities.
9. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
10. Police Officers John Does #1-10 are being sued in their individual and official capacities.
11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
12. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.
13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

14. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. On July 6, 2012, at approximately 1:00 p.m., plaintiff was unlawfully pulled over by the defendants while driving his motor vehicle in the vicinity of Rockaway Avenue and Somers Street, Brooklyn, NY.

19. After unlawfully pulling over plaintiff, approximately 4 defendant police officers approached the motor vehicle and asked plaintiff whether they could search his motor vehicle.

20. Plaintiff told the defendant police officers that they could not search his motor vehicle.

21. The defendant police officers then ordered plaintiff to exit the motor vehicle.

22. The officers ordered plaintiff to put his hands in the air and not to move.

23. Plaintiff complied with all of the defendant police officers' orders.

24. The defendant police officers then ordered plaintiff to the rear of his vehicle, and then without reasonable suspicion, probable cause, or legal justification, searched plaintiff.

25. While two defendant police officers searched plaintiff's person, two other defendant police officers searched plaintiff's motor vehicle, without reasonable suspicion, probable cause or any legal justification.

26. At no time did the defendant police officers recover any illegal drugs, weapons or contraband of any kind from plaintiff's person or from plaintiff's motor vehicle.

27. At no time did plaintiff commit a crime, nor did the defendant police officers have any reason to believe he commit a crime.

28. After approximately 15 minutes of searching plaintiff's person and plaintiff's vehicle, the defendant police officers released the plaintiff from police custody without issuing him a summons or charging him with any crime.

29. Plaintiff then got back in his car and began to drive towards his home.

30. Approximately 15 minutes later, at approximately 1:30 p.m., plaintiff saw the same police officers that had stopped him in an NYPD van in the vicinity of Broadway and Hull Street, Brooklyn, New York.

31. Plaintiff lawfully parked his vehicle and then approached the defendant police officers' van and asked them for their names and badge numbers.

32. One of the defendant police officers responded, "1-2-3 fuck you, boy."

33. Then, approximately 4 defendant police officers exited the NYPD vehicle and surrounded plaintiff in an extremely aggressive manner, causing plaintiff to fear for his safety.

34. The defendant police officers then unlawfully grabbed plaintiff in a rough and aggressive manner and physically shoved plaintiff against the side of the NYPD vehicle, and unlawfully handcuffed plaintiff without probable cause or legal justification.

35. The defendant police officers then threw plaintiff onto the ground and proceeded to repeatedly punch and kick plaintiff all over his head and torso, without probable cause or any legal justification.

36. At no time did plaintiff commit a crime, nor did the defendant police officers have probable cause or reason to believe he committed a crime.

37. At no time did the defendant police officers recover any guns, drugs, or contraband of any kind from plaintiff.

38. Defendants did not have an objective factual basis to believe plaintiff committed a crime or violated the law in any way.

39. Nevertheless, plaintiff was handcuffed, assaulted, battered, and placed under arrest by the defendant police officers without legal justification or probable cause.

40. The defendant police officers then placed plaintiff in the back of the NYPD van, shut the door, forced plaintiff to lay face down on the floor of the van and applied extreme pressure to his legs for approximately 30 seconds, causing plaintiff to suffer severe pain.

41. A defendant police officer then said to plaintiff, "you think you are tough? Let's see just how tough you are." The defendant police officer forced plaintiff to open his mouth and then placed his NYPD firearm inside of plaintiff's mouth, counted to three, and pulled the trigger.

42. Plaintiff feared for his life because the defendant police officer placed a firearm inside of his mouth and pulled the trigger.

43. After the defendant police officer removed the firearm from plaintiff's mouth, plaintiff told him that what he had done was wrong and that he was going to file a complaint against him.

44. In response, the defendant police officers told him he better, "shut the fuck up," and then the 4 defendant police officers punched plaintiff all over his head and torso.

45. The defendant police officers then transported plaintiff in a NYPD police vehicle to the 73rd precinct, located at 1470 E New York Ave, Brooklyn, NY.

46. When plaintiff arrived at the 73rd precinct, the defendant police officers shoved plaintiff very aggressively into a holding cell while plaintiff was still handcuffed, causing plaintiff to lose his balance and fall head-first into the wall.

47. After several hours in the holding cell, plaintiff was transported to the Emergency Department at Brookdale University Hospital Medical Center. Plaintiff received several staples to his head to close a large laceration. Plaintiff was also treated for pain to his head, back and right elbow.

48. Plaintiff was then transported back to the 73rd precinct and placed into a holding cell.

49. After many hours in the holding cell at the 73rd precinct, plaintiff was transported to Brooklyn Central Booking and placed into a holding cell.

50. After approximately 18 hours in police custody, on July 7, 2012 at approximately 7:30 a.m., plaintiff was arraigned and released on his own recognizance.

51. The incident was extremely psychologically damaging to plaintiff. Furthermore, as a result of the incident, plaintiff has a permanent scar on his head, and plaintiff suffered extreme pain in his head, back and legs for a significant period of time.

52. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, seizure, use of excessive force, false arrest and malicious prosecution of plaintiff.

53. The unlawful stop, search, false imprisonment, false arrest, assault, battery and use of excessive force on plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, and falsely imprisoned without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

61. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Unlawful Search

62. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 61 with the same force and effect as if more fully set forth at length herein.

63. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

64. Defendants lacked probable cause to search plaintiff.

65. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

66. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

67. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

68. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

FIFTH CAUSE OF ACTION

Failure to Intervene

70. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

72. Defendants failed to intervene to prevent the unlawful conduct described herein.

73. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

74. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

75. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior

SIXTH CAUSE OF ACTION

Negligence

76. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.

77. Defendants owed a duty of care to plaintiff.

78. Defendants breached that duty of care by stopping, searching, assaulting, battering, falsely arresting, and falsely imprisoning plaintiff.

79. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

80. All of the foregoing occurred without any fault or provocation by plaintiff.

81. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

82. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 81 with the same force and effect as if more fully set forth at length herein.

83. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Blayn Crosson. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

84. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

85. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

Assault

86. Plaintiff repeats and realleges paragraphs 1 through 85 as if fully set forth herein.

87. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.

88. Defendants were at all times an agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

89. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

NINTH CAUSE OF ACTION

Battery

90. Plaintiff repeats and realleges paragraphs 1 through 89 as if fully set forth herein.

91. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

92. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

93. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

TENTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

94. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 93 with the same force and effect as if more fully set forth at length herein.

95. The use of excessive force by defendants in throwing plaintiff onto the ground, repeatedly punching and kicking plaintiff in the head and torso, putting a gun in plaintiff's mouth and pulling the trigger, and shoving him into a holding cell while handcuffed causing him to hit his head against the wall, was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

96. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

97. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

JURY DEMAND

98. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff BLAYN CROSSON demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
 October 1, 2013

By: _____

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
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ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
October 1, 2013



STUART E. JACOBS